



Notification Waiver Determination

The Disability Trust - LEAD Disability Services

Acquisition	The Disability Trust Limited (The Disability Trust) applied for a notification waiver in respect of its proposed acquisition of LEAD Disability Services Ltd (LEAD), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	24 September 2026

Parties to the Acquisition	The Disability Trust, is a public benevolent institution, registered with the Australian Charities and Not-for-profits Commission. It is a registered National Disability Insurance Scheme (NDIS) provider and operates in New South Wales, the Australian Capital Territory, Victoria and Queensland. The Disability Trust offers individualised services such as accommodation support, employment assistance, community engagement programs facilitating social activities, group participation and therapy and support services. The Disability Trust is part of the Meridia group. LEAD is a public benevolent institution, registered with the Australian Charities and Not-for-profits Commission. LEAD has a particular interest in providing community participation, employment and training services to people who have a disability. LEAD also operates a Registered Training Organisation delivering vocational education that supports people to build careers in disability, aged care, and community services. LEAD is a registered NDIS provider and operates in New South Wales and the Australian Capital Territory. The parties both supply disability support services, including NDIS employment support services, in Australia.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition given: there is a small horizontal overlap between The Disability Trust (and its connected entities) and LEAD in the supply of disability support services, including NDIS employment

	support services, in New South Wales and the Australian Capital Territory b. there are alternative suppliers of disability support services, including NDIS employment support services, in New South Wales and the Australian Capital Territory. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.
--	--

Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act